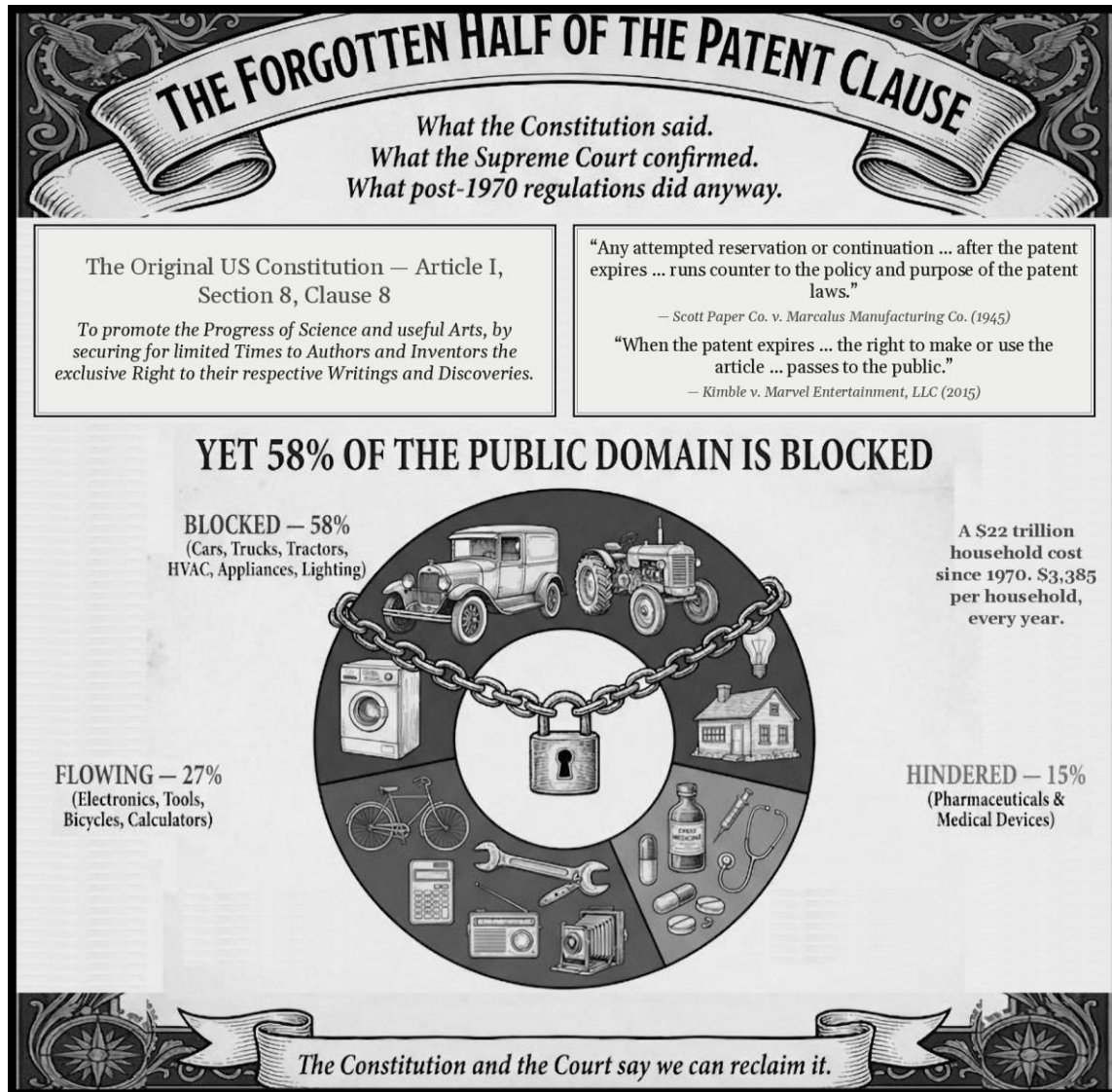


The Core Argument for The Forgotten Half of the Patent Clause

A constitutional argument in two volumes — condensed into a single book, and an offer to send it to you



You follow me on X, and you practice law. That combination is why this reaches you. The work argues that a promise written into Article I has been quietly nullified since 1970, and that a single federal courtroom can restore it. No federal court has ever ruled on the question.

The claim, in one breath

Article I, Section 8, Clause 8 grants inventors an exclusive right for “limited Times.” When a patent expires, the right to make, copy, and improve the invention passes to the public; the brand name and logo stay with the original maker, and only the expired engineering design passes. Post-1970 federal energy and safety standards make it unlawful to build a faithful remake of a regulated patent-expired design, so the monopoly ends but the exclusion does not. That blockage covers an estimated 58 percent of expired-patent commerce. The remedy is not deregulation. It is a time-shift: a certified remake answers to the standards of its original platform year, while modern standards remain untouched for new designs. The argument rests on two constitutional prongs — the Patent Clause and the Takings Clause.

What the condensed edition is

The full work runs two volumes. The condensed edition is the core legal argument standing alone: six chapters of the two-volume work printed unabridged — the two constitutional prongs, how a certified remake is built and certified, the objections answered, and why an outsider saw it — with summaries of the remaining chapters. It is the short

road through a long argument. Gord Magill, author of “End of the Road: Inside the War on Truckers,” has committed to the foreword; owner-operators are the strongest plaintiff category the work identifies. Every source carries a live link.

The questions a lawyer asks first

Chapters the condensed edition carries, in full or in summary:

Why Nobody Noticed: How a Constitutional Violation Hides in Plain Sight	When Outsiders Advance Constitutional Law and Other Disciplines
The Patent Clause Prong: “Limited Times” as Constitutive Language	The Takings Clause Prong: Cancellation of Vested Public Rights
The Environmental Question: Why the Patent Bargain Does Not Unleash 1970s Emissions	Objections Considered

How to get it — just reply

There is no book link printed here, and that is deliberate. Send me a line saying you are interested and I will reply with a private link to the condensed edition as a PDF; you can be reading it the same day. I ask only that the link not be posted publicly, since a publisher could read a freely circulating condensed edition as competing with the book itself. If, after reading, you would rather hold it in print, say so and a bound copy goes in the mail — it is print-on-demand, so allow two and a half to three weeks. The PDF you can have now. The complete two-volume Author’s Review Copy is available on the same request, in print, PDF, or EPUB.

Three public addresses, if you would rather look before you answer

[https://marti124.github.io/Patent Exam](https://marti124.github.io/Patent%20Exam)

Three chapters in full, the Two-Volume Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, including the legal research system OpenCase.

[https://marti124.github.io/Patent EndNotes](https://marti124.github.io/Patent%20EndNotes)

The endnotes, glossary, and key-terms apparatus — roughly 190 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: every Supreme Court case cited across the two volumes, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

[https://marti124.github.io/Patent Letters](https://marti124.github.io/Patent%20Letters)

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, owner-operator trucking and farm associations, health and lighting advocates, tribal nation leadership, public-domain scholars.

What is being asked

As this work moves toward publishers, the recurring question is whether a non-lawyer can be trusted with a constitutional argument. A few words from a practicing attorney or law professor would answer that better than anything the author could say. If, after reading enough to form a view, you find the work well-researched and deserving of a public hearing, a brief paragraph saying so — two or three sentences, in your own words — would help considerably. That is the whole request: a statement of seriousness, not agreement with the conclusions. And if this argument suits a colleague better than it suits you, passing it along is just as useful.

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To talk it over by phone, text first at 952-905-0822. Eastern time. Email or an X message is also the place to ask for the link — or for the full two volumes.

Overleaf: the proposed remedy in a single diagram.

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE

The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY

Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.

THE PATENT TERM

the exclusive right, granted for a limited Time

the patent still ends on schedule — it was never what blocked the public

THE MANUFACTURER'S PROTECTION

from low-cost remanufactured competition

THE CERTIFICATION GATE

A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

the patent-expired invention

this protection ends.

Low-cost remanufactured competition is lawful again.

THE EXPIRED-PATENT COMMONS

Now open — the public may make, copy, improve, and remanufacture.

Held to the standards the original met — only the brand name and logo stay with the original maker.

the wall still holds for newly designed vehicles — modern rules are untouched

patent filing

Patent expires — the “limited Time” ends

time →

Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.